

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.



CHAPTER lvii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Dunstable Water Harpenden Water and Heathfield and District Water. A.D. 1926.
[4th August 1926.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873: 33 & 34 Vict. c. 70. 36 & 37 Vict. c. 89.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 8) Act 1926. Short title.

A.D. 1926.

SCHEDULE.

DUNSTABLE WATER.

Dunstable Order. *Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 for empowering the Dunstable Gas and Water Company to raise additional capital and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short title. 1. This Order may be cited as the Dunstable Water Order 1926.

Commencement of Order. 2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “ the commencement of this Order.”

Incorporation of Acts. 3. So far as the same relate to the powers conferred by this Order the provisions of the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

A.D. 1926.

*Dunstable
Order.*

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order :

Provided that Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

4. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings and "the limits of supply" means the limits within which the Undertakers are from time to time authorised to supply water.

Interpreta-
tion.

5. The Dunstable Gas and Water Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

6. The Undertakers may from time to time raise for the purposes of their water undertaking additional capital not exceeding in the whole fifteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but no such share or stock shall vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of fifteen thousand pounds.

Power to
raise
additional
capital.

7. Except as by this Order otherwise provided the capital in new shares or stock created by the Undertakers under this Order shall form part of the existing capital of the Undertakers and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers

New capital
to be part of
general
capital.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926. — provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital.

Dunstable Order.

Restriction as to votes in respect of preference capital. 8. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock created by the Undertakers under this Order to which a preferential dividend shall be assigned.

Limit of dividend on new capital. 9. The Undertakers shall not in any one year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Order than a dividend at the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or a larger dividend than a dividend at the rate of six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Appointment of receiver. 10. Section 33 (For appointment of receiver) of the Dunstable Gas and Water Act 1912 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the commencement of this Order.

The mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand five hundred pounds in the whole.

New capital to be sold by auction or tender. 11.—(1) All ordinary and preference shares or stock forming part of the additional capital by this Order authorised to be raised shall be issued in accordance with the provisions of this Article.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the town clerk of the borough of Dunstable and to the clerk to the district council of every district within the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or

more local newspapers circulating within the said limits; A.D. 1926.

- Dunstable Order.*
- (b) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;
 - (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds;
 - (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;
 - (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of the ordinary and preference shares or stock of the Undertakers in accordance with the provisions of Sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportion as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided that in case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with the provisions of sub-division (2) or of subdivisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
Dunstable
Order.

Power to
borrow.

12. The Undertakers may borrow on mortgage of their water undertaking any sum or sums not exceeding in the whole (inclusive of the sums already borrowed by them at the commencement of this Order for the purposes of their water undertaking) one-half part of the amount of the capital authorised in respect of their water undertaking and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued shall have been fully paid up and the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock have been issued and fully paid up and upon production to such justice of the books of the Undertakers and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of
existing
mortgages.

13. All mortgages granted by the Undertakers in pursuance of the powers of any Act of Parliament or Order before and subsisting at the commencement of this Order shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Order but nothing in this Article contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Debenture
stock.

14. The Undertakers may create and issue debenture stock charged upon their water undertaking subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by subsequent Acts but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the commencement of this Order created and issued or granted by the Undertakers under any previous Act or Order or this Order or any subsequent Act or Order shall subject to the provisions of the subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of
mortgages
and debenture
stock.

15. All money to be raised by the Undertakers on mortgage or debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be

granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this Article contained affect any claim for land taken used or occupied by the Undertakers for the purposes of their water undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

A.D. 1926.

—
Dunstable
Order.

16.—(1) The Undertakers may create and issue all or any preference shares or stock or debenture stock (all of which are in this Article included in the expression “stock”) which they may hereafter create and issue under the powers of this Order so as to be redeemable on such terms and conditions as may be specified in a resolution of the Undertakers passed at a special meeting convened for the purpose.

Redeemable
preference or
debenture
stock.

(2) If it is so provided in the resolution the Undertakers may—

- (a) call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and
- (b) redeem the stock or any part thereof either by paying off the stock or by issuing to the holder of any stock subject to his consent other stock in substitution therefor.

(3) For the purpose of providing money for paying off the stock or for the purpose of providing substituted stock the Undertakers may create new stock (either redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid so however that the creation and issue for any such purpose of any particular class of stock does not make the total amount of such stock exceed the amount of that class of stock which the Undertakers are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock. Provided also that any stock created and issued solely in substitution for stock shall not be subject to the provisions of Article 11 of this Order.

(4) The Undertakers shall not redeem out of revenue any redeemable stock created and issued as aforesaid.

17. All moneys raised under this Order including premiums shall be applied only to the purposes of the water undertaking of the Undertakers to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of moneys.

*Dunstable
Order.*

Receipt
in case of
persons not
sui juris.

18. If any money is payable to a share or stock holder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers.

Power to
lay pipes
in private
streets.

19. The Undertakers may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if Section 29 of that Act were excepted from incorporation in this Order :

Provided that the Undertakers shall not exercise their powers under this Article with respect to any street or road belonging to any railway company except with the consent of such company and in carrying out any works authorised by this Article the Undertakers shall not unreasonably obstruct or interfere with the convenient access to any such street or road.

Undertakers
to connect
communica-
tion pipes
with mains.

20. Notwithstanding anything contained in any Act relating to the Undertakers the Undertakers shall have the exclusive right of executing any works on any of the water mains of the Undertakers for connecting any communication pipe therewith and the Undertakers shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Undertakers execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Undertakers in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Power to
Under-
takers to
repair com-
munication
pipes.

21. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner :

Provided that except in case of emergency the Undertakers shall not under the powers of this Article enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

For pro-
tection of
Bedfordshire
County
Council.

22. For the protection of the Bedfordshire County Council (in this Article referred to as " the County Council ") the following provisions shall unless otherwise agreed in writing between the Undertakers and the County Council apply to the breaking up and reinstatement of any main road or any county or main road

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

bridge (which expression shall in this Article include the roadway over such bridge and the approaches thereto) in the administrative county of Bedford (that is to say) :—

A.D. 1926:

—
Dunstable
Order.

- (1) The notice required by section 30 of the Waterworks Clauses Act 1847 with respect to the breaking up of any main road or county or main road bridge shall as regards any such road or bridge be not less than seven days instead of three days :
- (2) The plan required by section 31 of the last-mentioned Act shall as regards any such road or bridge be on a scale of not less than a quarter of an inch to every one hundred feet and shall be accompanied by sections to suitable scales to show clearly the proposed works and shall be delivered to the surveyor to the County Council by the Undertakers not less than seven days before the Undertakers commence to open or break up such road or bridge :
- (3) All works shall be so executed by the Undertakers as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or bridge and the Undertakers shall not break up at any one time a greater length than one hundred yards of any such road :
- (4) If except in case of frost more than forty-eight hours shall elapse between the commencement of the breaking up of any such road or bridge in which the mains pipes or other works of the Undertakers are or may be laid for the purpose of laying altering renewing or repairing mains pipes or other works and the termination of the works of reinstatement of such road or bridge the Undertakers shall pay to the County Council the reasonable costs which the County Council may incur in the repair and reinstatement of so much of any such road or bridge as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes or other works :
- (5) If the Undertakers in the execution of any works in or affecting any such road or bridge as aforesaid shall cause any damage injury or disturbance to such road or bridge and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Waterworks Clauses Act 1847 then it shall be lawful for the County Council after seven days' notice to the Undertakers of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

*Dunstable
Order.*

to the County Council all costs charges and expenses which the County Council shall reasonably and properly incur in carrying out such works including all reasonable expenses of superintendence :

- (6) The County Council shall not be liable for or in respect of any damage or injury done to any works of the Undertakers laid below the surface of any such road where such injury arises from the ordinary use by the County Council of a steam or other roller not exceeding twelve tons in weight for the repair of such road or from the ordinary use of any traction engine not exceeding the weight aforesaid :
- (7) If any difference arises at any time between the County Council and the Undertakers touching the foregoing provisions of this Article or anything to be done or not to be done thereunder or the giving or withholding of any such consent or the conditions of giving the same or any direction such difference shall be settled by arbitration by an engineer to be agreed upon between the County Council and the Undertakers and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

Application of
Section 35 of
Waterworks
Clauses Act
1847.

23. Section 35 of the Waterworks Clauses Act 1847 in its application to the Undertakers shall be read and construed as if the words "one-eighth part" were substituted therein for the words "one-tenth part."

Charges for
supply by
hose-pipe.

24. Where water supplied for domestic purposes is used for horses washing carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept the Undertakers may if a hose-pipe or other similar apparatus is used charge any additional sum not exceeding twenty shillings per annum and (where more motor cars than one are ordinarily kept) a further sum not exceeding ten shillings per annum for each motor car beyond the first and any sum chargeable under the provisions of this Article shall be recoverable with and as the water rate.

Rates
payable by
owners of
small
houses.

25. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

A.D. 1926.

*Dunstable
Order.*

26.—(1) The Undertakers may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any authority company or persons respectively in bulk for any such purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply Provided also that nothing in this Article shall authorise the Undertakers to lay any mains or other pipes or to interfere with any street beyond the limits of supply.

Contracts
for supply-
ing water
in bulk.

(2) It shall not be lawful for the Undertakers to supply water in bulk or otherwise beyond or for use beyond the Administrative County of Bedford unless notice in writing of their intention to afford such supply has been given to the County Council of that County and if the County Council within one month of the receipt of the notice object to such supply until the consent of the Minister of Health has been obtained.

27. The Undertakers may enter into and carry into effect agreements made with any company or person supplying water under Parliamentary authority for the purchase of water in bulk by the Undertakers for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Undertakers for the purpose of their water undertaking.

Purchase of
water in
bulk.

28.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Undertakers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for the supply of water within any part of such district.

Guarantees
by district
councils.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Dunstable
 Order.*

(3) Nothing in this Article shall be deemed to authorise any such urban or rural district council to use any water supplied by the Undertakers under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other company or person supplying water under Parliamentary authority without the consent of such other company or person.

Power to
 sell meters.

29. The Undertakers may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to
 supply
 fittings.

30.—(1) The Undertakers may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans water-closets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Undertakers in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this Article shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Undertakers
 not bound to
 supply several
 houses by one
 pipe.

31. The Undertakers shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of
 discon-
 tinuance.

32. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers.

Notice to
 Under-
 takers of
 connecting
 or dis-
 connecting
 meters.

33. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. Ivii]
Provisional Orders Confirmation (No. 8) Act, 1926.

superintendence of any officer or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

A.D. 1926.

—
Dunstable
Order.

34. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Undertakers. Provided always that if the Undertakers and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Register of
meter to
be *prima*
facie
evidence.

35. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Undertakers.

Mainten-
ance of
common
pipe.

36. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 or in any Act relating to the Undertakers the ordinary general meeting of the Undertakers shall be held in each year in the month of February or March or at such other time as the directors of the Undertakers may appoint and it shall not be obligatory on the Undertakers to hold half-yearly general meetings or to balance their accounts or make up a balance sheet half-yearly.

Ordinary
meetings.

37. The directors of the Undertakers may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Undertakers out of the profits of the Undertakers without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the prescribed maximum rate of dividend payable on such shares or stock.

Interim
dividends.

38.—(1) The directors of the Undertakers may close the register of transfers of any ordinary or preference shares or stock of the Undertakers for a period not exceeding fourteen days previous to the declaration of any interim dividend on any such ordinary or preference shares or stock and may close the register of transfers of debentures or debenture stock of the Undertakers for a period not exceeding fourteen days previously to the payment of any interest on any such debentures or debenture stock

Closing of
transfer
books.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
Dunstable
Order.

and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this Article.

(2) Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer of any ordinary or preference shares or stock lodged for registration with the Undertakers while the transfer books relating to such ordinary or preference shares or stock are so closed and any transfer of any debentures or debenture stock lodged for registration with the Undertakers while the transfer books relating to such debentures or debenture stock are so closed shall as between the Undertakers and the person claiming under any such transfer but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

Directors
holding
office under
or contract-
ing with
Under-
takers.

39. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Undertakers by reason of his holding any office or place of trust or profit under the Undertakers or by reason of his being interested in any contract with the Undertakers nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract :

Provided that—

(a) in the case of his being or becoming interested in any contract with the Undertakers whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors of the Undertakers at which the contract is determined on if his interest then exists or in any other case at the first meeting of the said directors after the acquisition of his interest or after his appointment and also in the next annual report of the Undertakers ; and

(b) no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Undertakers to give to the directors of the Undertakers or any of them any security by way of indemnity.

Joint
holders.

40. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock in the capital of the Undertakers or are the executors or administrators of a deceased person who was at the time of his death so entitled and registered any one of those persons may vote at

any meeting at which holders of shares or stock of the same class are entitled to vote either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof. Several executors or administrators of a deceased member in whose name any share or stock stands shall for the purposes of this Article be deemed joint holders thereof.

A.D. 1926.

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Dunstable
Order.

41. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy :

As to
appoint-
ment of
proxies.

Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Undertakers at the same time as or before the instrument appointing the proxy.

42.—(1) The prescribed number of auditors shall be two or the Undertakers may at any time and from time to time appoint any firm to be the auditors of the Undertakers.

Auditors.

(2) If and so long as a firm appointed under the provisions of this Article are the auditors of the Undertakers the provisions of this Order and of any Act incorporated therewith relating to the prescribed number of auditors shall not apply to the Undertakers.

(3) In the event of the death or resignation of any auditor of the Undertakers the directors of the Undertakers may appoint an auditor in the place of the auditor so dying or resigning and any auditor so appointed shall hold office until the next shareholders' meeting.

(4) The auditors or in the case of a firm being appointed as auditors the members of such firm shall be persons who are members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or accountants approved by the Minister of Health.

43. Any notice to be served by the Undertakers on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Undertakers for the time being authorised in writing by the directors of the Undertakers being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or such other officer as aforesaid being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or

Authentica-
tion and
service of
notices by
Under-
takers.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

*Dunstable
Order.*

by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Injuring
meters &c.

44. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Undertakers or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Undertakers shall (without prejudice to any other right or remedy for the protection of the Undertakers) be liable to a fine not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Undertakers or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Undertakers the Undertakers may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Undertakers by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Undertakers when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Penalty for
closing
valves and
apparatus.

45. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off or interfere with any valve cock or other work or apparatus belonging to the Undertakers whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

Undertakers) be liable on conviction to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained Provided that this Article shall not apply to a consumer closing a valve fixed on his communication pipe.

A.D. 1926.
—
Dunstable Order.

46. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the Undertakers whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

47. Save as otherwise expressly provided by any Act or Order from time to time relating to the Undertakers all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner :

Recovery of penalties &c.

Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

48. Where the payment of more than one sum by any person is due under any provisions of any Act or Order from time to time relating to the Undertakers any summons or warrant issued for the purposes of that Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several sums in one summons.

49. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Undertakers.

Costs of Order.

Given under the Official Seal of the Minister of Health
this Fifteenth day of April One thousand nine
hundred and twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

A.D. 1926.

HARPENDEN WATER.

Harpenden Order. *Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 for empowering the Harpenden Water Company Limited to construct further works to extend their area of supply to raise additional capital and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short and collective titles.

1. This Order may be cited as the Harpenden Water Order 1926 and the Harpenden Water Order 1889 the Harpenden Water Order 1899 and this Order may be cited together as the Harpenden Water Orders 1889 to 1926.

Commencement of Order.

2. This Order shall come into force and have effect upon the day when the Act of Parliament confirming this Order is passed which date is hereinafter referred to as “the commencement of this Order.”

Incorporation of Acts.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Waterworks Clauses Acts 1847 and 1863 are except where the same are expressly varied by this Order hereby incorporated with and form part of this Order :

Provided that Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted therefrom.

For the purpose of such incorporation the term “special Act” in the said Acts shall be construed to mean this Order.

Interpretation.

4.—(1) In this Order unless the context otherwise requires—

“The Order of 1889” means the Harpenden Water Order 1889 which was confirmed by the Water Orders Confirmation Act 1889;

“The Order of 1899” means the Harpenden Water Order 1899 which was confirmed by the Water Orders Confirmation Act 1899;

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

“ The Undertakers ” means the Harpenden Water Company Limited; A.D. 1926.

“ The undertaking ” means the undertaking of the Undertakers as for the time being authorised; *Harpenden Order.*

“ The deposited plans ” and “ the deposited sections ” mean respectively the plans and sections deposited in respect of this Order;

“ The existing limits ” means the limits of the Undertakers for the supply of water under the Order of 1889;

“ The added limits ” means the area added by this Order to the existing limits;

“ The limits of supply ” means the limits within which the Undertakers are for the time being authorised to supply water.

(2) The several words terms and expressions to which by the Acts incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

5.—(1) The limits within which the Undertakers may supply water shall extend to and include in addition to the existing limits the Parish of Wheathampstead in the Rural District of Saint Albans in the County of Hertford. *Extension of limits of supply.*

(2) Subject to the provisions of this Order the Undertakers shall have and may exercise within the added limits all and the like powers rights privileges and authorities and be subject to all and the like obligations as they now have and are subject to within the existing limits.

6. If at any time after the expiration of seven years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order throughout any part of the added limits the Rural District Council of Saint Albans may in accordance with the provisions of the Public Health Act 1875 provide a supply of water in or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in such part of the added limits not sufficiently supplied by the Undertakers and for the repeal of the powers of the Undertakers in that behalf. *Where Undertakers not furnishing sufficient supply local authority or company may supply.*

If any difference shall arise between the Undertakers and the Council or any such company body or person as to the sufficiency of the supply of water in any part of the added limits such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health.

[Ch. Ivii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
Harpenden
Order.
Purchase of
lands by
agreement.

7.—(1) In addition to any other lands which the Undertakers are under the Order of 1889 authorised to take or purchase the Undertakers may subject to the limitation mentioned in subdivision (2) of this Article from time to time purchase take on lease or otherwise acquire by agreement and use and hold for the general purposes of the undertaking any lands and any easements rights or privileges (not being an easement right or privilege of water in which persons other than the parties to the easement have an interest) in over or under any lands which they may from time to time require and the Undertakers may on any lands acquired by them under this Article make maintain alter or discontinue such cisterns tanks aqueducts drains cuts sluices pipes culverts engines buildings offices and dwellings and other works (other than works for taking or intercepting water) as may be required for the purposes of or in connection with the undertaking :

Provided that the Undertakers shall not on any lands so acquired so long as the same are held by them create or permit a nuisance or erect or authorise the erection thereon of any houses or similar buildings except offices and dwellings for persons in their employ and such buildings as may be required for the purposes of or in connection with the undertaking.

(2) The total quantity of land held by the Undertakers at any one time under this Article shall not exceed ten acres in the whole.

Undertakers
may sell
lease &c.
spare lands.

8. The Undertakers may sell or demise and lease for any terms not exceeding twenty-one years or exchange or otherwise dispose of to such persons and in such manner as the Undertakers think fit any lands and property for the time being belonging to the Undertakers which they may not require for the purposes of the undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous land so far as such provisions are in each case applicable) and on any sale lease exchange or disposal by the Undertakers of any such lands and property whether the same be subject to the said provisions of the Lands Clauses Consolidation Act 1845 or not they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the sale lease exchange or disposal subject to such reservations accordingly and may also make any such sale lease exchange or disposal subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter as they think fit.

As to
exercise of
powers of
Section 12

9. The Undertakers may on all or any of the lands for the time being held by them in connection with the undertaking execute for the purposes of or in connection with the undertaking

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by Section 12 of the Waterworks Clauses Act 1847. Provided that the Undertakers shall not under the powers of this Article create or permit the creation or continuance of any nuisance on any such lands.

A.D. 1926.

*Harpenden
Order.*
of Water-
works
Clauses Act
1847.

10. The Undertakers may on any land for the time being belonging to or leased by them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Undertakers for the purposes of the undertaking.

Power to
erect &c.
cottages for
officers and
servants.

11. The Undertakers may on the lands hereinafter described so long as they are possessed of the same or so long as they may be entitled to do so under agreement make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described and other works and conveniences connected therewith and may enlarge renew and improve the same. The works authorised by this Order will be wholly situate within the County of Hertford and are as follows :—

Power to
construct
waterworks.

(a) Work No. 1 A well and pumping station in the Parish of Wheathampstead in the Rural District of Saint Albans in the enclosure numbered 390 in that parish on the ¹/₂₅₀₀ Ordnance Map Hertfordshire Sheet XXVII. 3 (Edition of 1924) at a point six hundred and forty feet or thereabouts measured in a south-south-easterly direction from the south-western corner of Mayfield Cottages;

(b) Work No. 2 An aqueduct or line or lines of pipes partly in the said Parish of Wheathampstead and partly in the Parish and Urban District of Harpenden commencing at or in the well and pumping station (Work No. 1) hereinbefore described and terminating in the existing eastern water tower at the waterworks of the Company in Shakspeare Road Harpenden :

Together with all necessary cuts shafts adits culverts drains sluices wells boreholes tanks embankments dams buildings machinery filters filter beds mains pipes apparatus approaches works appliances and conveniences of whatever character as may be necessary or convenient in connection with or subsidiary to the said works or necessary or expedient for the purposes of obtaining raising collecting storing and distributing water.

12. In constructing the works authorised by this Order the Undertakers may deviate laterally to any extent within the limits of deviation shown on the deposited plans and the Undertakers may deviate vertically from the levels shown on the

Limits of
deviation.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
Harpenden
Order.

deposited sections to any extent not exceeding five feet upwards and to any extent downwards. Provided that the Undertakers shall not raise any aqueduct or pipe above the surface of the ground unless so shown on the deposited sections and then only to the extent shown.

For protec-
tion of River
Lee and for
preventing
contamina-
tion of water.

13.—(1) Nothing contained in Article 11 of this Order shall authorise the Undertakers to construct any well or borehole at a less distance than one hundred feet from the channel of the River Lee nor to construct any adit heading or other underground work communicating with any such well or borehole at a less distance from the channel of the river than the well or borehole nor within one hundred feet from the surface of the ground.

(2) In the construction of any well or borehole hereby authorised the well shall be lined for a depth of at least one hundred feet from the surface and the borehole sunk for at least this depth so as in each case to be impermeable to water for this depth.

(3) The Undertakers shall cause analyses of the water from the well or borehole to be made at intervals not less often than once in every quarter of a year by a competent analyst and copies of the report of the analyst upon every such analysis shall be furnished by the Undertakers to the Minister of Health within seven days after the receipt of the report by the Undertakers.

(4) If upon the examination of any such report or otherwise the Minister of Health is satisfied that the water from the well or borehole should be treated in order to render it suitable for domestic use the Undertakers shall carry out the treatment by such method or methods and for such period as the Minister may from time to time prescribe.

(5) The Undertakers shall not pump from the works authorised by this Order a greater quantity of water than will amount on an average calculated over any one month to five hundred thousand gallons a day.

(6) For the purpose of ascertaining the quantity of water pumped by the Undertakers from the works authorised by this Order the Undertakers shall provide and maintain in an efficient state of repair suitable appliances for automatically measuring or otherwise ascertaining and recording the quantity of water so pumped and such appliances and records shall at all reasonable hours in the daytime be open to the inspection of the Hertfordshire County Council the Lee Conservancy Board and the Metropolitan Water Board or any person duly authorised in writing by them respectively.

(7) If it appears that in respect of any month the Undertakers have been pumping water at the said pumping station in excess of the amount prescribed by this Article they shall be liable to a penalty not exceeding ten pounds in respect of every fifty thousand

gallons by which they have exceeded the prescribed quantity but without prejudice to any other right or remedy. A.D. 1926.

(8) Nothing in this Order shall authorise the Undertakers to abstract any water from the River Lee or from any stream discharging into that river. *Harpenden Order.*

14. For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir well adit aqueduct line of pipes or other work of the Undertakers the Undertakers may cause the water in any such work to be discharged into any available stream watercourse or ditch. Discharge of water into streams.

In the exercise of the power conferred by this Article the Undertakers shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

The powers of this Article shall not be exercised so as to damage or affect the railways or works of the London Midland and Scottish Railway Company or the London and North Eastern Railway Company.

15. Subject to the provisions of this Order the Undertakers may collect impound take use divert and appropriate for the purposes of the undertaking all such springs streams and waters as may be intercepted by the works by this Order authorised. Power to take waters.

16. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in some Act of Parliament or some Order confirmed or approved by Parliament. Limiting powers of Undertakers to abstract water.

17. The limitation prescribed by the Order of 1889 as amended by the Order of 1899 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "new capital") not exceeding thirty thousand pounds after taking into account the premiums (if any) on the issue thereof: New capital.

Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole forty-eight thousand pounds unless the Undertakers are authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Harpenden
Order.*

New capital
to be sold by
auction or
tender.

18.—(1) All shares forming part of the new capital shall be issued in accordance with the provisions of this Article.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine :

Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply ;
- (b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened until after the day of auction or last day for the receipt of tenders as the case may be ;
- (c) No lot offered for sale shall comprise shares of greater nominal value than one hundred pounds ;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid ;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in manner prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

A.D. 1926.

(4) Any shares which have been offered for sale in accordance with subdivision (2) or with subdivisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares then remaining unsold may be otherwise disposed of at such price and in such manner as the directors of the Undertakers may determine for the purpose of realising the best price obtainable.

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*Harpenden
Order.*

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares sold and the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares.

19. All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of money.

20. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the new capital than seven pounds in respect of every one hundred pounds of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than six pounds in respect of every one hundred pounds of so much of the new capital as may be issued as preference capital.

Limit of
dividend on
capital.

21. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applied to dividend are insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Dividends on
different
classes of
ordinary
shares to be
paid propor-
tionately.

22.—(1) The amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole one-half of the amount of the capital of the Undertakers at the time actually raised by the issue of shares including any premium that may have been or may be obtained on the sale of any such shares.

Limit of
borrowing
powers.

(2) No higher rate of interest than six pounds per centum per annum shall be paid by the Undertakers without the consent

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926. — <i>Harpenden Order.</i>	of the Minister of Health in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid. (3) Article 9 (Limit of borrowing powers) of the Order of 1889 and Article 14 (Limits of borrowing powers) of the Order of 1899 are hereby repealed.
Limits of pressure.	23. Article 16 of the Order of 1889 (Water need not be laid on constantly under pressure) shall be repealed at the expiration of three years from the commencement of this Order.
Notice of discontinuance.	24. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers.
Notice to Undertakers of connecting or disconnecting meters.	25. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.
Guarantees by district councils.	26.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantees or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Undertakers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for the supply of water within any part of such district which is within the said limits by means of such main pipe or works. (2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.
Penalty for closing valves and apparatus.	27. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off any valve cock or other work or apparatus belonging to the Undertakers

whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Undertakers) be liable on conviction to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained. Provided that this Article shall not apply to a consumer closing a valve fixed on his communication pipe.

A.D. 1926.

—
*Harpenden
 Order.*

28.—(1) Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the directors of the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may if the occupier be not himself liable therefor under any agreement be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rates payable by owners of certain houses.

(2) The provisions of section 73 of the Waterworks Clauses Act 1847 shall mutatis mutandis extend and apply to any payments made under the provisions of this Article by the owner of any house and as if such first mentioned provisions applied in the case of any agreement whether made before or after the commencement of this Order.

29. Any fittings let for hire by the Undertakers shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Fittings let for hire not to be subject to distress.

30. The Undertakers shall not be bound to supply more than one house with water by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Undertakers not bound to supply several houses by one pipe.

31. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Undertakers.

Maintenance of common pipe.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Harpenden
Order.*

Power to lay
pipes in
private
streets.

32. The Undertakers may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if Section 29 of that Act were excepted from incorporation in this Order :

Provided that the Undertakers shall not exercise their powers under this Article with respect to any street or road belonging to a railway company except with the consent of such company but such consent shall not be unreasonably withheld and in carrying out any works authorised by this Article the Undertakers shall not unreasonably obstruct or interfere with the convenient access to any such street or road.

As to com-
munication
pipes.

33.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act or Order relating to the Undertakers to maintain any pipe or apparatus used for the supply of water from the works of the Undertakers the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of Sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Undertakers by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any streets in the limits of supply may subject to the like conditions execute such works on behalf of such owner or occupier and any expenses incurred by the Undertakers shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

Power to
Undertakers
to repair
communica-
tion pipe.

34. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner :

Provided that except in case of emergency the Undertakers shall not under the powers of this Article enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

35. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and similar apparatus and stopcocks on or in any mains or pipes supplying houses with water (without thereby in any way affecting the ownership of any such mains or pipes) and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and for that purpose stop up break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water-pipes electric lines wires and apparatus Provided that the Undertakers shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 :

A.D. 1926.

—
Harpenden
Order.

Detection of
waste.

Provided also that the Undertakers shall not enter upon break up or interfere with the railway or works or any electric wires or apparatus belonging to a railway company or any street belonging to and forming the approach to any station or depot of a railway company without the consent of such company but such consent shall not be unreasonably withheld nor shall the Undertakers unreasonably interfere with or render less convenient the access to or exit from any station or depot of such company.

36. The price to be charged for a supply of water by measure not exceeding fifty thousand gallons in one year shall not exceed two shillings per thousand gallons for a supply of water by measure exceeding fifty thousand gallons but not exceeding one hundred thousand gallons in one year shall not exceed one shilling and sixpence per thousand gallons and for a supply of water by measure exceeding one hundred thousand gallons in one year shall not exceed one shilling per thousand gallons.

Price of
supply by
measure.

37. The Undertakers shall not be compelled to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required :

Supply to
houses partly
used for
trade.

Provided that where a water supply to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by measure but nothing in this Article shall authorise the Undertakers to refuse to supply water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

38. The Undertakers shall not be bound to supply with water any workhouse hospital asylum (whether public or private) or sanatorium or any other public institution otherwise

Supply by
measure in
certain
cases.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926. —
Harpenden Order. than by measure upon such terms as may be agreed between the Undertakers and the occupier or other person having the charge thereof or at the rates which the Undertakers are under the provisions of Article 36 of this Order entitled to charge for supply by measure. Provided that the provisions of this Article shall not apply to any such premises which are habitually occupied by less than twelve persons.

Further provisions as to supply by measure for certain purposes.

39.—(1) The Undertakers shall not if a hose-pipe or other similar apparatus is used be compelled to supply water for use for washing carriages motor cars or other vehicles or for use for other purposes in stables or premises where carriages motor cars or other vehicles are kept otherwise than by measure at the rates which the Undertakers are under the provisions of Article 36 of this Order entitled to charge for supply by measure. Provided that the minimum sum for which the Undertakers shall be compellable to afford a supply for such purposes shall be twenty shillings in any one year.

(2) In all cases to which this Article shall apply and in which a meter with an inlet and outlet not exceeding respectively three-eighths of one inch in diameter is sufficient for the purpose of the supply the Undertakers shall supply and fix the meter at their own expense and shall not be entitled to charge for the use of the same any higher rent than six shillings per annum.

Contracts for supplying water in bulk.

40.—(1) The Undertakers may enter into and carry into effect agreements with any authority water board company or person for the supply of water beyond the limits of supply to any such authority board company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any authority water board company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

(2) So much of Article 22 (Power to supply water in bulk within or without limits of supply) of the Order of 1889 as relates to the supply of water in bulk without the limits of supply is hereby repealed.

(3) It shall not be lawful for the Undertakers to supply water in bulk or otherwise for use in—

(a) any area outside the Administrative County of Hertford;
or

(b) any area outside the watershed of the River Lee;

unless notice in writing of their intention to afford such supply has been given in the first case to the County Council of Hertford and in the second case to the Lee Conservancy Board and to the Metropolitan Water Board and if within one month of the receipt of the notice the County Council the Conservancy Board or the Water Board as the case may be object to the supply of which notice is so given until the consent of the Minister of Health has been obtained.

A.D. 1926

—
Harpenden
Order.

41. The provisions of Article 14 of the Order of 1889 shall apply to Work No. 2 by this Order authorised and all other mains pipes and works laid under the powers of this Order where the same will be laid over under or so as to affect the railways and works of the London and North Eastern Railway Company and as if the name of the London and North Eastern Railway Company were substituted in that Article for that of the Great Northern Railway Company Provided that in the application of subdivision (2) of the said Article the words "under powers existing at the date of the Harpenden Water Order 1926" shall be deemed to have been inserted therein after the words "require to alter or repair."

For protec-
tion of
London and
North
Eastern
Railway
Company.

42. Any notice to be served by the Undertakers on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Undertakers from time to time authorised in writing by the directors of the Undertakers being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentica-
tion and
service of
notices by
Undertakers

43. Save as otherwise expressly provided by any Act or Order from time to time relating to the Undertakers all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable under the same or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery
of penalties
&c.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
Harpenden
Order.

Recovery of
demands.

44. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the Undertakers whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court provided that the demand does not exceed the amount recoverable in that court in a personal action.

Copy of
Confirming
Act to be
registered.

45. The Undertakers shall deliver to the Registrar of Joint Stock Companies a printed copy of the Act confirming this Order and he shall retain and register the same and if such copy is not so delivered within three months after the passing of the said Act the Undertakers shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Undertakers who knowingly and wilfully authorises such default shall incur the like penalty. There shall be paid to the Registrar by the Undertakers on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on the registration of any document other than the memorandum or the abstract required to be filed with the Registrar by a receiver or manager or the statement required to be sent to the Registrar by the liquidator in a winding-up in England.

Costs of
Order.

46. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Given under the Official Seal of the Minister of Health
this Seventeenth day of April One thousand nine
hundred and twenty-six.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

HEATHFIELD AND DISTRICT WATER.

A.D. 1926.

Provisional Order under the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 empowering the Heathfield and District Water Company to maintain and continue waterworks and supply water in bulk to extend the limits of supply of the Company to authorise them to raise additional capital and for other purposes.

*Heathfield
and District
Order.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

1. This Order may be cited as the Heathfield and District Water Order 1926 and the Heathfield and District Water Act 1913 the Heathfield and District Water Company (Modification of Charges) Order 1922 and this Order may be cited together as the Heathfield and District Water Act and Orders 1913 to 1926.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as “the commencement of this Order.”

Commence-
ment of
Order.

3. So far as the same relate to the powers conferred by this Order the provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Companies Clauses Consolidation Act 1845 as amended by subsequent Acts with respect to the following matters (that is to say) :—

Incorpora-
tion of
Acts.

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Heathfield
 and District
 Order.*

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts and the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order:

Provided that Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words "with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner" were omitted therefrom.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

Interpreta-
 tion.

4. The several words terms and expressions to which by any Act wholly or partly incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings And

"the Act of 1913" means the Heathfield and District Water Act 1913;

"the undertaking" means the undertaking of the Undertakers as existing from time to time;

"the limits of supply" means the limits within which the Undertakers are from time to time authorised to supply water;

"the existing limits" means the limits within which the Undertakers were immediately prior to the commencement of this Order authorised to supply water;

"the added limits" means the area added by this Order to the existing limits.

Under-
 takers.

5. The Heathfield and District Water Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Purchase
 of lands
 by agree-
 ment.

6.—(1) In addition to any other lands which the Undertakers are under the Act of 1913 authorised to take or purchase the Undertakers may subject to the limitation mentioned in

sub-division (2) of this Article from time to time purchase take on lease or otherwise acquire by agreement and use and hold for the purposes of the undertaking any lands and any easements rights or privileges (not being an easement right or privilege of water in which persons other than the parties to the agreement have an interest) in over or affecting any lands which they may from time to time require and the Undertakers may on any lands acquired by them under this Article make maintain alter or discontinue such cisterns tanks aqueducts drains cuts sluices pipes culverts engines buildings offices and dwellings and other works (other than works for taking or intercepting water) as may be required for the purposes of or in connection with the undertaking :

A.D. 1926.

—
*Heathfield
 and District
 Order.*

Provided that the Undertakers shall not on any lands so acquired so long as the same are held by them create or permit a nuisance or erect or authorise the erection thereon of any houses or similar buildings except offices and dwellings for persons in their employ and such buildings as may be required for the purposes of or in connection with the undertaking.

(2) The total quantity of land held by the Undertakers at any one time under this Article shall not exceed ten acres in the whole.

7. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Undertakers may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of a supply of water or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Order and may sell exchange or dispose of any rents reserved therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
 retain sell
 &c. lands.

8. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Undertakers any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the

Persons
 under
 disability
 may grant
 easements
 &c.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

*Heathfield
and District
Order.*

Confirma-
tion of
existing
work.

same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

9. The construction by the Undertakers of the following work and of any incidental or subsidiary works laid down by the Undertakers in connection therewith and the expenditure of the moneys expended by the Undertakers thereon is hereby sanctioned and confirmed and the said work shall for all purposes form part of the undertaking.

The said work is situate in the County of East Sussex and is as follows namely :—

A relay pumping station situate in the parish of Burwash in the Rural District of Ticehurst on the western side of the enclosure numbered in the said parish 1567 on the $\frac{1}{25000}$ Ordnance Map (Sussex East Sheet XXIX. 15. Edition 1909).

Limiting
powers of
Under-
takers to
abstract
water.

10. The Undertakers shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in some Act of Parliament or some Order confirmed or approved by Parliament.

Exercise of
powers of
Section 12 of
Waterworks
Clauses Act
1847.

11. The Undertakers may on all or any of the lands for the time being held by them in connection with the undertaking execute for the purposes thereof or in connection therewith any of the works (other than wells and works for taking and intercepting water) and exercise any of the powers mentioned in or conferred by Section 12 of the Waterworks Clauses Act 1847 :

Provided that the Undertakers shall not under the powers of this Article create or permit the creation or continuance of any nuisance on any such lands.

Laying
mains in
parish of
Wadhurst.

12. For the purpose of facilitating the supply of water to those parts of the limits of supply which are in the Rural District of Ticehurst and a constant supply of water to premises in such parts the Undertakers may in the parish of Wadhurst in the said rural district exercise all the powers conferred on them by the Waterworks Clauses Act 1847 with respect to the breaking up of streets and the laying down of mains as if the said parish were included within the limits of supply but nothing in this Article shall be deemed to authorise the Undertakers to supply water in the said parish.

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

13. The limits within which the Undertakers may supply water shall extend to and include in addition to the existing limits the following portion of a parish (that is to say) :—

A.D. 1926.

—
*Heathfield
 and District
 Order.*

In the Rural District of Uckfield in the County of East Sussex—

Extension
 of limits of
 supply.

So much of the parish of Waldron as lies to the west of an imaginary line drawn due north and south from a point one and a half miles west of Heathfield Railway Station;

and from and after the commencement of this Order the Undertakers may within the added limits exercise any rights powers and privileges which they may exercise within the existing limits and the provisions of the Act of 1913 (as amended by the Heathfield and District Water Company (Modification of Charges) Order 1922) and this Order shall so far as applicable be in full force and have effect throughout the limits of supply.

14. If after the expiration of five years from the commencement of this Order the Undertakers are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Order throughout the added limits the local authority of the district within which the added limits are situate may provide a supply in accordance with the provisions of the Public Health Act 1875 or the local authority or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of the added limits not sufficiently supplied by the Undertakers and for the repeal of the powers of the Undertakers in that behalf.

Power to
 local
 authority &c.
 to supply
 water in
 case Under-
 takers fail to
 supply.

If any difference shall arise between the Undertakers and any such local authority company body or person as to the sufficiency of the supply of water in any part of the added limits such difference shall be settled by an arbitrator to be appointed on the application of either party by the Minister of Health.

15. Notwithstanding anything contained in any Act relating to the Undertakers the Undertakers shall have the exclusive right of executing any works on any of the water mains of the Undertakers for connecting any communication pipe therewith and the Undertakers shall on the request of any owner or occupier of any premises who is entitled to be supplied with water by the Undertakers execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith and any expenses incurred by the Undertakers in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable as a civil debt.

Undertakers
 to connect
 communica-
 tion pipes
 with mains.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Heathfield
and District
Order.*

Power to
Undertakers
to repair
communica-
tion pipes.

16. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner :

Provided that except in case of emergency the Undertakers shall not under the powers of this Article enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

Supply to
certain
premises.

17.—(1) The Undertakers shall not be bound to supply with water otherwise than by meter—

- (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required; or
- (b) any workhouse hospital nursing home asylum (whether public or private) sanatorium school club hotel public-house or inn; or
- (c) any boarding-house capable of accommodating at least twelve persons; or
- (d) any public institution which is habitually occupied by at least twenty persons.

(2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by meter but nothing in this Article shall authorise the Undertakers to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

(3) The minimum quarterly charge for a supply of water by meter to any of the premises in this Article mentioned shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same rateable value.

Cisterns to
be provided
for high level
supplies.

18. The Undertakers may require that any dwelling-house of more than two storeys erected after the commencement of this Order and situate on land at a higher level than fifty feet below the service reservoir from which a supply of water is furnished by them to such dwelling-house shall be provided with a cistern or cisterns capable of containing a total quantity of water sufficient to provide an adequate supply for such dwelling-house

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

for a period of twenty-four hours and the Undertakers shall not be required to supply any such dwelling-house until the same is provided with a cistern in conformity with the requirements of this Article.

A.D. 1926.

—
*Heathfield
 and District
 Order.*

19. The Undertakers and the Crowborough District Water Company (in this Article referred to as "the Crowborough Company") may enter into and carry into effect agreements for the use by the Undertakers for any purposes of the Act of 1913 and this Order or either of them of any works mains or apparatus of the Crowborough Company and as to any payment to be made by the Undertakers to the Crowborough Company in respect thereof and of matters incidental to the purposes aforesaid.

Agreements
 with Crow-
 borough
 Company.

20. The Undertakers may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply. Provided also that nothing in this Article shall authorise the Undertakers to lay any mains or other pipes in or to interfere with any street beyond the limits of supply.

Contracts
 for supply of
 water in
 bulk.

21.—(1) The Undertakers may with the consent of the Minister of Health enter into and carry into effect agreements made with any company or person for the purchase of water in bulk by the Undertakers for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Undertakers for the purposes of the undertaking.

Purchase of
 water in
 bulk.

(2) Notwithstanding anything in this Article contained the Undertakers shall not take or purchase any water pumped intercepted or otherwise taken within the limits of supply of the Crowborough District Water Company without the consent in writing of that company first obtained.

22.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Under-

Guarantees
 by district
 councils.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Heathfield
 and District
 Order.*

takers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for or with respect to the supply of water within any part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.

(3) Nothing in this Article shall be deemed to authorise any such urban or rural district council to use any water supplied by the Undertakers under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other company or person supplying water under parliamentary authority (other than any limits in which such council may themselves be affording a supply of water under any statutory powers in that behalf) without the consent of such other company or person.

Fittings not
 to be subject
 to distress.

23. Any fittings let for hire under the provisions of the Act of 1913 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

For protec-
 tion of East
 Sussex
 County
 Council.

24.—(1) Section 54 (For protection of East Sussex County Council) of the Act of 1913 shall extend and apply to any works in the added limits or in the parish of Wadhurst executed by the Undertakers under this Order in or affecting any such road bridge roadway or approach as is mentioned in that section.

(2) Section 55 (For further protection of East Sussex County Council) of the Act of 1913 shall extend and apply to the pumping station described in the Article of this Order whereof the marginal note is "Confirmation of existing work."

For protec-
 tion of
 Southern
 Railway
 Company.

25. Section 56 (For protection of London Brighton and South Coast Railway Company South Eastern Railway Company and South Eastern and Chatham Railway Companies Managing Committee) of the Act of 1913 shall extend and apply for the protection and benefit of the Southern Railway Company with respect to the execution of any works under this Order.

26. In addition to the capital authorised by the Act of 1913 the Undertakers may raise any further sums not exceeding in the whole twenty thousand pounds (in this Order referred to as "new capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those modes respectively but no such share or stock issued under the authority of this Order shall vest in the person accepting the same until the full price of such share or stock including any premium obtained on the sale thereof as hereinafter provided shall have been paid in respect thereof. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce after allowing for any premiums or discounts which may be obtained or arise on the sale thereof the sum of twenty thousand pounds.

A.D. 1926.

—
*Heathfield
 and District
 Order.*

Additional
 capital.

27. The Undertakers shall not in any year pay out of their profits any larger dividend on the new capital than seven pounds in respect of every one hundred pounds actually paid up of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than seven pounds in respect of every one hundred pounds actually paid up of so much of the new capital as may be issued as preference capital.

Limits of
 dividend
 on new
 capital.

28. Except as by this Order otherwise provided the new capital and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the new capital were part of the existing capital of the Undertakers of the same class or description and the new shares or stock were shares or stock in that capital. Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

New capital
 to be part
 of general
 capital.

29.—(1) All ordinary and preference shares or stock created by the Undertakers after the commencement of this Order shall be issued in accordance with the provisions of this Article.

New capital
 to be sold by
 auction or
 tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine:

Provided as follows:

(a) Notice of the intended sale shall be given in writing to the clerk to the district council of every district within

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Heathfield
and District
Order.*

the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said limits ;

- (b) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be ;
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds ;
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid ;
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of shares or stock of the Undertakers in accordance with the provisions of Sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with sub-division (2) or with sub-divisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors of the Undertakers may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

of Trade stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for each class of shares or stock.

A.D. 1926.

—
*Heathfield
 and District
 Order.*

30. Notwithstanding anything in Section 13 of the Act of 1913 the Undertakers may subject to the provisions of this Order borrow on mortgage of the undertaking any sum or sums (inclusive of any sums already borrowed by them) not exceeding in the whole one-half of the amount of the capital which at the time of borrowing has been raised by the issue of shares or stock under the powers of the Act of 1913 and this Order including any premiums received in respect of such shares or stock but no sum shall be so borrowed until the Undertakers have proved to a justice of the peace before he gives his certificate under Section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the capital at the time issued together with the premium (if any) realised on the sale thereof has been fully paid up.

Power to
 borrow.

31. The Undertakers may create and issue debenture stock subject to the provisions of Section 15 (Power to create debenture stock) of the Act of 1913.

Debenture
 stock.

32. All money to be raised by the Undertakers on mortgage or by the creation and issue of debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock nor shall anything in this Article contained affect any claim for land taken used or occupied by the Undertakers for the purposes of the undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

Priority of
 money
 raised on
 mortgage or
 debenture
 stock.

33. All mortgages granted by the Undertakers in pursuance of or in conformity with any Act or Order before the commencement of this Order and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of the Act or Order in pursuance of or in conformity with which the same were granted have priority over any mortgages granted under the authority of this Order but nothing in this Article contained shall affect any priority of the

Existing
 mortgages
 to have
 priority.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926. interest of any debenture stock at any time created and issued by the Undertakers.

*Heathfield
and District
Order.*

Redeemable
preference or
debenture
stock.

34.—(1) The Undertakers may create and issue any preference shares or stock or debenture stock (all of which are in this Article included in the expression "stock") which they are authorised to create and issue so as to be redeemable on such terms and conditions as may be specified in a resolution of the Undertakers passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Undertakers may—

(a) call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(b) redeem the stock or any part thereof either by paying off the stock or by issuing to the holder of any stock subject to his consent other stock in substitution therefor.

(3) The Undertakers may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (redeemable or irredeemable) or re-issue stock originally created and issued as aforesaid. Provided that the creation and issue for that purpose of any particular class of stock shall not make the total nominal amount of such stock exceed the amount of that class of stock which the Undertakers are for the time being authorised to create except during the necessary interval between the creation and issue of the new stock and the redemption of the old stock. Provided also that any stock created and issued solely in substitution for stock shall not be subject to the provisions of Article 29 of this Order.

(4) The Undertakers shall not redeem out of revenue any stock so created as aforesaid.

Appoint-
ment of
receiver.

35. Section 14 (For appointment of receiver) of the Act of 1913 is hereby repealed as from the commencement of this Order but without prejudice to any appointment heretofore made or to the continuance of any proceedings then pending. The mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than three thousand pounds in the whole.

Application
of moneys.

36. All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of

premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

A.D. 1926

—
*Heathfield
 and District
 Order.*

37. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 or in any Act or Order relating to the Undertakers the ordinary general meeting of the Undertakers shall be held in each year in the month of February or March or at such other time as the directors of the Undertakers may appoint and it shall not be obligatory on the Undertakers to hold half-yearly general meetings or to balance their accounts or make up a balance sheet half-yearly.

Ordinary
 meetings.

38. The directors of the Undertakers may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Undertakers out of the profits of the Undertakers without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one-half of the prescribed maximum rate of dividend payable on such shares or stock.

Interim
 dividends.

39.—(1) The directors of the Undertakers may close the register of transfers of any ordinary or preference shares or stock of the Undertakers for a period not exceeding fourteen days previous to the declaration of any interim dividend on any such ordinary or preference shares or stock and may close the register of transfers of debentures or debenture stock of the Undertakers for a period not exceeding fourteen days previously to the payment of any interest on any such debentures or debenture stock and the directors may in any such case fix a day for the closing of any register which they are authorised to close under the provisions of this Article.

Closing of
 transfer
 books.

(2) Seven days' notice of the closing of any such register shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer of any ordinary or preference shares or stock lodged for registration with the Undertakers while the transfer books relating to such ordinary or preference shares or stock are so closed and any transfer of any debentures or debenture stock lodged for registration with the Undertakers while the transfer books relating to such debentures or debenture stock are so closed shall as between the Undertakers and the person claiming under any such transfer but not otherwise be considered as made subsequently to the declaration of any such dividend or the payment of any such interest as the case may be.

40. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock in the capital of the Undertakers or are the executors or administrators

Joint
 holders.

[Ch. lvii.] *Ministry of Health* [16 & 17 GEO. 5.]
Provisional Orders Confirmation (No. 8) Act, 1926.

A.D. 1926.

—
*Heathfield
and District
Order.*

of a deceased person who was at the time of his death so entitled and registered any one of those persons may vote at any meeting at which holders of shares or stock of the same class are entitled to vote either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share or stock stands shall for the purposes of this Article be deemed joint holders thereof.

As to
appoint-
ment of
proxies.

41. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy :

Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Undertakers at the same time as or before the instrument appointing the proxy.

Penalty for
closing
valves and
apparatus.

42. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off or interfere with any valve cock or other work or apparatus belonging to the Undertakers whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Undertakers) be liable on conviction to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained Provided that this Article shall not apply to a consumer closing a valve fixed on his communication pipe.

Recovery of
penalties &c.

43. Save as otherwise expressly provided by any Act or Order from time to time relating to the undertaking all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
demands.

44. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the undertaking or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand

[16 & 17 GEO. 5.] *Ministry of Health* [Ch. lvii.]
Provisional Orders Confirmation (No. 8) Act, 1926.

does not exceed the amount recoverable in that court in a personal action. A.D. 1926.

45. The following provisions of the Act of 1913 are hereby repealed :— *Heathfield and District Order.*

Section 9 (New shares or stock to be sold by auction or tender); Repeal.

Section 46 (Limiting powers of Company to abstract water);

Section 52 (Power to sell lands not required for undertaking);

Section 64 (Supply to houses partly used for trade &c.).

46. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall to the extent of one-third thereof but not exceeding the sum of one hundred and fifty pounds be paid by the Ticehurst Rural District Council and as to the balance thereof shall be paid by the Undertakers and may be paid by the Undertakers as part of their expenses on revenue account. *Costs of Order.*

Given under the Official Seal of the Minister of Health this
Sixth day of April One thousand nine hundred and
twenty-six.

(L.S.)

F. L. TURNER
Assistant Secretary Ministry of Health.

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